



Stephen Cooke <stephencooke.c@gmail.com>

FW: NCC3896/2023 - Cooke S C & H A [SEC=OFFICIAL]

7 messages

Samantha Miller <samantha@claritylawyers.com.au>

Thu, Dec 7, 2023 at 5:14 PM

To: Stephen Cooke <stephencooke.c@gmail.com>, Stephen Cooke <stevecooke.c@gmail.com>

Cc: Prue Garvin <prue@claritylawyers.com.au>

Dear Stephen,

Please see below. I am very upset on your behalf about this decision. The Court has not considered that you meet the criteria for an urgent application. Unfortunately, I think this time of year is incredibly busy and the courts do shut down over Christmas. The matter is listed for the end of 29 January according to the Court Portal, not 29 February as in the below email.

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Please note I'm not in the office at the moment and it will help if you copy Prue into all correspondence.

Yours faithfully,

Samantha Miller | Director and Principal Solicitor

Office: 4023 5553

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Level 4, T&G Building, [45 Hunter Street, Newcastle NSW](#)

www.claritylawyers.com.au

ABN: **81644034300**

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From: DR Support Staff <DepRegSupport@fcfcoa.gov.au>
Sent: Thursday, December 7, 2023 3:07 PM
To: Samantha Miller <samantha@claritylawyers.com.au>
Subject: NCC3896/2023 - Cooke S C & H A [SEC=OFFICIAL]

OFFICIAL

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Family law kit | Australian Federal Police ([afp.gov.au](https://www.afp.gov.au))

Kind regards

Richard | Case Manager | National Support Pool

Federal Circuit and Family Court of Australia | www.fcfcoa.gov.au



FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA

Stephen Cooke <stephencooke.c@gmail.com>
To: cooke.neill@gmail.com

Thu, Dec 7, 2023 at 5:41 PM

See below

----- Forwarded message -----

From: **Samantha Miller** <samantha@claritylawyers.com.au>

Date: Fri, 8 Dec 2023, 9:14 am

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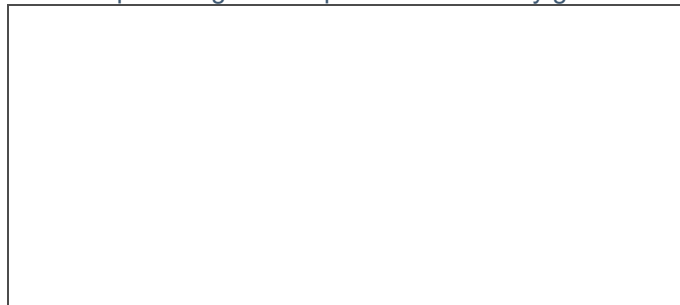
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6 attachments

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To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Thu, Dec 7, 2023 at 5:43 PM

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Many thanks,

Yours faithfully,

Prue Garvin | Paralegal



Phone: (02) 4023 5553

Email: prue@claritylawyers.com.au

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ABN: 172 4106 2932



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Samantha Miller | Director and Principal Solicitor

Office: 4023 5553

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***Our office will be closed from 12noon on Friday, 22 December 2023 until 9am on Wednesday, 3 January 2024.
We wish you a Merry Christmas and a Happy New Year!***



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Federal Circuit and Family Court of Australia | www.fcfcoa.gov.au



FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA

**Initiating Application filed 5 December 2023.pdf**

544K

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To: Prue Garvin <prue@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Thu, Dec 7, 2023 at 5:50 PM

Can we not service to where she works, the rooms?

On Fri, 8 Dec 2023, 9:43 am Prue Garvin, <prue@claritylawyers.com.au> wrote:

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Many thanks,

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Prue Garvin | Paralegal

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Phone: (02) 4023 5553

Email: prue@claritylawyers.com.au

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Cc: Samantha Miller <samantha@claritylawyers.com.au>

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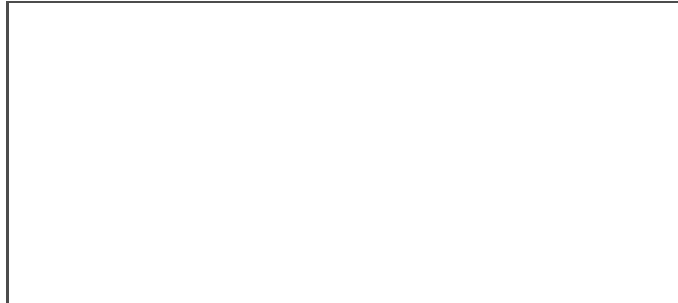
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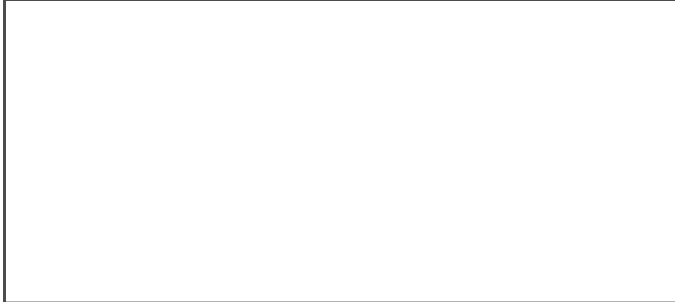
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Thu, Dec 7, 2023 at 5:54 PM

Yep, we can serve her at work.

I will send the sealed application to Delaney Roberts today and again ask for them to confirm they hold instructions to accept service. Failing a response by Monday I will make arrangements with a process server.

Yours faithfully,

Prue Garvin | Paralegal



Phone: (02) 4023 5553

Email: prue@claritylawyers.com.au

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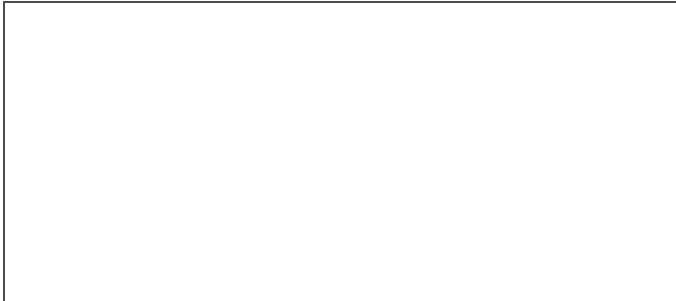
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Samantha Miller | Director and Principal Solicitor

Office: 4023 5553

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Level 4, T&G Building, [45 Hunter Street, Newcastle NSW](#)

www.claritylawyers.com.au

ABN: **81644034300**

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From: DR Support Staff <DepRegSupport@fcfcoa.gov.au>
Sent: Thursday, December 7, 2023 3:07 PM
To: Samantha Miller <samantha@claritylawyers.com.au>
Subject: NCC3896/2023 - Cooke S C & H A [SEC=OFFICIAL]

OFFICIAL

Dear Sir/Madam,

The Court acknowledges receipt of the application/response referenced above, through the Commonwealth Courts Portal.

Your request for an urgent listing has been considered by a Registrar.

Upon assessment of the material provided, the Registrar has not granted an urgent listing and your application has been listed at **9.30am on 29 February 2024**.

Details regarding your appearance on **29 February 2024** will be forwarded by Chambers in due course.

Your documents have been published onto the Commonwealth Courts Portal. You now need to print and serve those documents on the respondent/s / applicant/s.

Please Note: When an application is filed which includes an order seeking a watch list order, the applicant can provide a sealed copy of the application to the AFP together with the **Family Law Watchlist Request Form** available in the Family Law Kit on the AFP website. AFP procedures allow for the child to be placed on the watch list pending the application being heard. The court does not send applications to the AFP.

Family law kit | Australian Federal Police (afp.gov.au)

Kind regards

Richard | Case Manager | National Support Pool

Federal Circuit and Family Court of Australia | www.fcfcoa.gov.au



Stephen Cooke <stephencooke.c@gmail.com>
To: Prue Garvin <prue@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Thu, Dec 7, 2023 at 5:56 PM

Thank you.

On Fri, 8 Dec 2023, 9:54 am Prue Garvin, <prue@claritylawyers.com.au> wrote:

Yep, we can serve her at work.

I will send the sealed application to Delaney Roberts today and again ask for them to confirm they hold instructions to accept service. Failing a response by Monday I will make arrangements with a process server.

Yours faithfully,

Prue Garvin | Paralegal

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Phone: (02) 4023 5553

Email: prue@claritylawyers.com.au

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Level 4, T&G Building, 45 Hunter Street, Newcastle NSW 2300

www.claritylawyers.com.au

ABN: 172 4106 2932



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From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Friday, December 8, 2023 9:53 AM
To: Prue Garvin <prue@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>
Subject: Re: NCC3896/2023 - Cooke S C & H A [SEC=OFFICIAL]

We don't know where her new address is.

But she works every Monday at the rooms;

Newcastle Heart, 64 Denison St, Hamilton East NSW 2303

On Fri, 8 Dec 2023, 9:43 am Prue Garvin, <prue@claritylawyers.com.au> wrote:

Hi Stephen,

Further to Samantha's email below, I **enclose** a sealed copy of your Application with the correct listing date.

Are you able to provide me with an address for where Heather is currently staying, please? As we have not received acknowledgment from Delaney Roberts that they have accepted service of your documents we may need to serve Heather personally. We need to be able to provide proof to the Court that Heather has received your application.

Many thanks,

Yours faithfully,

Prue Garvin | Paralegal

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Phone: (02) 4023 5553

Email: prue@claritylawyers.com.au

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From: Samantha Miller
Sent: Friday, December 8, 2023 9:13 AM
To: Stephen Cooke <stephencooke.c@gmail.com>; Stephen Cooke <stevecooke.c@gmail.com>
Cc: Prue Garvin <prue@claritylawyers.com.au>
Subject: FW: NCC3896/2023 - Cooke S C & H A [SEC=OFFICIAL]

Dear Stephen,

Please see below. I am very upset on your behalf about this decision. The Court has not considered that you meet the criteria for an urgent application. Unfortunately, I think this time of year is incredibly busy and the courts do shut down over Christmas. The matter is listed for the end of 29 January according to the Court Portal, not 29 February as in the below email.

In order to progress we are looking at whether we can review this decision but does not look good. I therefore propose that we write to Heathers lawyer now and propose that you collect the children from school this afternoon for the weekend and accept her proposal on an interim basis only.

We will also propose urgent mediation and hopefully get closer by the time we get to Court. Do you have any suggestions for school holiday time? Could we propose week about do you think? What about actual Christmas Day etc. We could suggest that you have them from say 7pm on Christmas Eve until 7pm Christmas Day? This would be reversed next year.

I'll start drafting now.

Please note I'm not in the office at the moment and it will help if you copy Prue into all correspondence.

Yours faithfully,

Samantha Miller | Director and Principal Solicitor

Office: 4023 5553

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Family law kit | Australian Federal Police ([afp.gov.au](https://www.afp.gov.au))

Kind regards

Richard | Case Manager | National Support Pool

Federal Circuit and Family Court of Australia | www.fcfcfa.gov.au



4 attachments



image001.jpg
11K

Our office will be closed from 12noon on Friday, 22 December 2023 until 9am on Wednesday, 3 January 2024. We wish you a Merry Christmas and a Happy New Year!



image002.png
33K



image001.jpg
11K

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